

COMMERCIAL LEASE AGREEMENT

This agreement is entered into as of the date signed below and is legally binding upon execution.

1. PARTIES TO THE AGREEMENT

This Commercial Lease Agreement (the "Agreement") is made and entered into by and between the Landlord and Tenant identified below. Each party represents that they have full legal authority to enter into this Agreement.

LANDLORD	TENANT
Full Legal Name / Entity: Cornerstone Properties LLC	Full Legal Name / Entity: Brightwave Digital Solutions Inc.
Address: 4821 Harbor View Blvd, Suite 100	Address: 1032 Innovation Drive
City, State, ZIP: San Diego, CA 92101	City, State, ZIP: San Diego, CA 92121
Phone: (619) 555-0148	Phone: (619) 555-0293
Email: leasing@cornerstoneprops.com	Email: admin@brightwavedigital.com

2. PREMISES

Landlord hereby leases to Tenant, and Tenant hereby leases from Landlord, the commercial premises described below (the "Premises"), for the sole purpose stated in Section 5 of this Agreement.

Property Address: 4821 Harbor View Blvd, Suite 205, San Diego, CA 92101

Suite / Unit No.: 205 | **Square Footage (approx.):** 2,400 sq ft

Parcel / APN No.: 533-141-07-00 | **County:** San Diego

Tenant accepts the Premises in their current "AS IS" condition unless a written punch-list of required repairs is attached hereto as Exhibit A.

3. LEASE TERM

This is a fixed-term commercial lease. The tenancy shall commence and expire as stated below, unless sooner terminated in accordance with the provisions of this Agreement.

Commencement Date: June 1, 2026 | **Expiration Date:** May 31, 2027

If Tenant remains in possession after the Expiration Date with Landlord's written consent, the tenancy shall convert to a month-to-month tenancy on the same terms and conditions, terminable by either party upon thirty (30) days' written notice.

4. RENT

Monthly Base Rent: \$4,800.00 | **Annual Rent:** \$57,600.00

Rent Due Date: The 1st day of each calendar month

Payment Method: ACH Bank Transfer

Remit Payment To: Cornerstone Properties LLC – Banking details on file

Rent shall be paid without demand, deduction, or offset. If rent is not received within **five (5) calendar days** of the due date, Tenant shall pay a late fee equal to **five percent (5%)** of the monthly rent. Returned checks will incur a fee of **\$150.00** per occurrence. All amounts are payable in U.S. Dollars.

5. PERMITTED USE

Permitted Use: **General office use and digital marketing services**

Tenant shall use and occupy the Premises solely for the Permitted Use stated above and for no other purpose without prior written consent of Landlord. Tenant shall not use the Premises for any unlawful purpose, nor in any manner that creates a nuisance, violates any applicable zoning ordinance, or increases the insurance premiums of Landlord.

6. SECURITY DEPOSIT

Security Deposit Amount: \$9,600.00

Tenant shall deposit with Landlord the Security Deposit concurrently with execution of this Agreement. The Security Deposit shall be held by Landlord as security for the full and faithful performance of all Tenant's obligations. Landlord may apply the deposit to unpaid rent, damages beyond normal wear and tear, or any other breach by Tenant. The deposit shall be returned within **thirty (30) days** after the Expiration Date, less any lawful deductions, accompanied by an itemized written statement.

7. OPERATING EXPENSES & UTILITIES

This lease shall be structured as:

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| ☐ Gross Lease - Landlord pays all operating expenses. |
| ☐ Net Lease - Tenant pays base rent plus property taxes. |
| ☐ Double Net (NN) - Tenant pays base rent, taxes, and insurance. |
| ☒ Triple Net (NNN) - Tenant pays base rent, taxes, insurance, and maintenance. |

Tenant is responsible for establishing and paying directly all utility accounts serving the Premises, including electricity, gas, water, sewer, telephone, and internet, unless otherwise agreed in writing.

8. MAINTENANCE & REPAIRS

Tenant's Obligations: Tenant shall, at its sole cost and expense, keep and maintain the interior of the Premises, including all fixtures, equipment, and improvements installed by Tenant, in good order and condition. Tenant shall promptly repair any damage caused by Tenant, its employees, agents, or invitees.

Landlord's Obligations: Landlord shall maintain the structural elements of the building, including roof, exterior walls, foundation, and common areas, in good repair and condition, unless such damage is caused by Tenant's negligence or misuse.

Tenant shall immediately notify Landlord in writing of any condition that requires repair. Landlord shall have a reasonable time (not to exceed **thirty (30) days** for non-emergency items) to make such repairs after receipt of written notice.

9. ALTERATIONS & IMPROVEMENTS

Tenant shall not make any structural alterations, additions, or improvements to the Premises without the prior written consent of Landlord, which shall not be unreasonably withheld. Any approved alterations shall be performed by licensed contractors in compliance with all applicable codes and permits. Unless Landlord specifies otherwise in writing, all alterations shall become the property of Landlord upon expiration of this Agreement and shall remain on the Premises. Landlord may require Tenant to restore the Premises to their original condition at Tenant's expense upon termination.

10. INSURANCE

Throughout the lease term, Tenant shall obtain and maintain at its own expense:

- Commercial general liability insurance with limits of not less than **\$1,000,000** per occurrence and **\$2,000,000** aggregate.
- Property insurance covering all of Tenant's personal property and trade fixtures.
- Workers' compensation insurance as required by applicable law.

All policies shall name Landlord as an additional insured and shall provide for at least **thirty (30) days** written notice to Landlord prior to cancellation. Tenant shall provide certificates of insurance to Landlord upon request.

11. INDEMNIFICATION & WAIVER OF CLAIMS

Tenant shall indemnify, defend, and hold harmless Landlord and its officers, agents, and employees from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) Tenant's use or occupancy of the Premises; (b) any act or omission of Tenant, its employees, agents, contractors, or invitees; or (c) any breach or default by Tenant under this Agreement. Landlord shall not be liable to Tenant for any damage to property or loss of business caused by third parties, casualty, acts of God, or events outside Landlord's reasonable control.

12. DEFAULT & REMEDIES

Events of Default: Each of the following shall constitute an Event of Default by Tenant: (a) failure to pay rent or any other sum when due, if such failure continues for **five (5) days** after written notice; (b) failure to perform any other obligation under this Agreement within **thirty (30) days** after written notice; (c) filing for bankruptcy or insolvency; or (d) abandonment of the Premises.

Landlord's Remedies: Upon the occurrence of an Event of Default, Landlord may, at its option and without waiving any other right or remedy: (i) terminate this Agreement and re-enter the Premises; (ii) recover all unpaid rent and other sums due; (iii) pursue any other remedy available at law or in equity. Tenant waives any right of redemption to the extent permitted by applicable law.

13. ASSIGNMENT & SUBLETTING

Tenant shall not assign this Agreement or sublet all or any part of the Premises without the prior written consent of Landlord, which shall not be unreasonably withheld or delayed. Any purported assignment or sublease without such consent shall be void and shall constitute an Event of Default. No assignment or sublease shall relieve Tenant of any obligations under this Agreement unless Landlord expressly agrees in writing.

14. DAMAGE & DESTRUCTION

If the Premises are damaged by fire, casualty, or other cause, Landlord shall notify Tenant within **fifteen (15) days** whether Landlord elects to repair or restore the Premises. If Landlord elects to repair, this Agreement shall remain in force, and rent shall be abated in proportion to the portion of the Premises rendered untenable. If damage renders the entire Premises untenable and Landlord cannot restore within **one hundred eighty (180) days**, either party may terminate this Agreement upon **thirty (30) days** written notice.

15. CONDEMNATION (EMINENT DOMAIN)

If all or a substantial portion of the Premises is taken or condemned by any governmental authority, this Agreement shall terminate as of the date of taking. If only a portion is taken that does not materially affect Tenant's use, this Agreement shall remain in force with a proportionate reduction in rent. All condemnation awards shall belong exclusively to Landlord.

16. ENTRY BY LANDLORD

Landlord or its authorized representatives may enter the Premises upon **forty-eight (48) hours** prior written notice for the purpose of inspection, repairs, maintenance, or showing the Premises to prospective tenants or purchasers. In the event of an emergency, Landlord may enter without prior notice. Such entry shall not constitute a constructive eviction or give rise to any claim by Tenant.

17. HOLDOVER

If Tenant remains in possession of the Premises after the Expiration Date without Landlord's written consent, Tenant shall be deemed a holdover tenant and shall pay rent at a rate equal to **one hundred fifty percent (150%)** of the last monthly rent, on a month-to-month basis. Landlord may terminate any holdover tenancy upon **thirty (30) days** written notice, and Tenant shall be liable for all damages arising from the holdover.

18. NOTICES

All notices required or permitted under this Agreement shall be in writing and delivered by: (a) personal delivery; (b) certified mail, return receipt requested; or (c) reputable overnight courier, to the addresses set forth in Section 1. Notices shall be deemed received upon personal delivery, three (3) business days after mailing, or one (1) business day after overnight courier dispatch.

19. GOVERNING LAW & DISPUTE RESOLUTION

Governing State: [California](#) | **County / Jurisdiction:** [San Diego County](#)

This Agreement shall be governed by and construed in accordance with the laws of the state identified above. Any dispute arising under or relating to this Agreement shall first be submitted to non-binding mediation. If mediation fails, disputes shall be resolved by binding arbitration or litigation in the courts of the county identified above, at the election of Landlord. The prevailing party shall be entitled to recover reasonable attorneys' fees and costs.

20. GENERAL PROVISIONS

- **Entire Agreement:** This Agreement, together with any attached exhibits, constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, or agreements.
- **Amendments:** No modification of this Agreement shall be valid unless made in writing and signed by both parties.
- **Waiver:** No waiver by either party of any breach shall be construed as a waiver of any subsequent breach.
- **Severability:** If any provision of this Agreement is found invalid or unenforceable, the remaining provisions shall continue in full force.
- **Counterparts & Electronic Signatures:** This Agreement may be executed in counterparts, each of which shall be deemed an original. Electronic signatures shall be valid and binding.
- **Time of Essence:** Time is of the essence with respect to all dates and deadlines in this Agreement.

- **Force Majeure:** Neither party shall be in default if performance is prevented by events beyond their reasonable control, including acts of God, natural disaster, or government orders, provided written notice is given promptly.

EXHIBITS: ☐ Exhibit A - Punch-List / Repair Schedule ☐ Exhibit B - Rules & Regulations ☐ Exhibit C - Additional Terms

SIGNATURES

By signing below, each party acknowledges that they have read, understand, and agree to be bound by all terms and conditions of this Commercial Lease Agreement.

LANDLORD	TENANT
Signature: _____ _____	Signature: _____ _____
Printed Name: Cornerstone Properties LLC	Printed Name: Brightwave Digital Solutions Inc.
Title: Authorized Representative	Title: Authorized Representative
Date: _____ _____	Date: _____ _____

This document is intended for informational and transactional use. The parties are encouraged to seek independent legal counsel before signing. This agreement may be subject to local, state, and federal laws that may impose additional requirements or restrictions.